

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NO. 140A1626R0005	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 01/22/2026	PAGE 1	OF 67	PAGES
	IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					

4. CONTRACT NO.		5. REQUISITION/PURCHASE REQUEST NO. 0044031555		6. PROJECT NO.		
7. ISSUED BY BIA CENTRAL 00016 12201 Sunrise Valley Drive Contracting Office Mail Stop-244 Reston VA 20192		CODE A16	8. ADDRESS OFFER TO			
9. FOR INFORMATION CALL		a. NAME William McLaughlin		b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) (850) 281-3444		

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

This information is provided for the following project: CRIP MC Checks and Lateral 73 Construction.

1. This is a competitive full and open acquisition with no set-asides.
2. Funding: An award will be made under this solicitation, as funds are presently available. The Government reserves the right to cancel this solicitation before the closing date.
3. Proposal Acceptance Period: The proposal acceptance period shall extend sixty (60) days past the closing date.
4. Solicitation Deadline: March 3, 2026, at 12:00 P.M. Eastern Time.
5. Questions and Answers: Any questions relating to this solicitation shall be submitted to the Contracting Officer (CO) no later than February 2, 2026. Any questions sent must be submitted on the Questions and Answers Log attached to this solicitation.

Continued...

11. The contractor shall begin performance within <u>30</u> calendar days and complete it within <u>750</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See _____).		12b. CALENDAR DAYS 14
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO		

13. ADDITIONAL SOLICITATION REQUIREMENTS:

- Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1200 (hour) local time 03/03/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.
- An offer guarantee ☒ is, ☐ is not required.
- All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.
- Offers providing less than 60 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
CODE	16. REMITTANCE ADDRESS (Include only if different than Item 14.)
FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER									
DATE.									

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY A16 BIA CENTRAL 00016 12201 Sunrise Valley Drive Contracting Office Mail Stop-244 Reston VA 20192	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>1</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) William McLaughlin
30b. SIGNATURE	31b. UNITED STATES OF AMERICA BY
30c. DATE	31c. DATE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	6. Notice to Proceed (NTP): The NTP will be issued within 30 calendar days of contract award. Pending the acceptance of all required bonding and insurance. 7. Period of Performance: Seven hundred fifty (750) calendar days after issuance of NTP. 8. In accordance with FAR Part 36.204 ¿ Disclosure of the Magnitude of Construction Projects estimated price range is between \$18,000,000 and \$22,000,000. 9. Special attention is called to FAR Clause 52.236-7, Permits and Responsibilities and FAR Clause 52.229-3, Federal, State, and Local Taxes. Offerors are responsible for contacting the tax authorities and tribe or tribal organization involved with regard to any requirements regarding state taxes, tribal taxes, royalties and/or other applicable tribal laws or ordinances. Any costs associated with this section shall be included in the contractor¿s firm fixed price proposal. Contractor is responsible for contacting the appropriate TERO office for coordination and approvals. 10. This lowest price technically acceptable LPTA will use the Economical LPTA method as described in Section M. Please note that some offers that do not present the lowest price may not be reviewed for technical acceptability. 11. "System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals¿Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications¿Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM." Continued...				

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00010	12. Point of Contact: William McLaughlin at william.mclaughlin@bia.gov (Contracting Officer) Delivery: 750 Days After Notice to Proceed Delivery Location Code: 0011285504 BIA Bureau of Indian Affairs 2021 4th Avenue North Billings MT 59101 US CRIP MC Checks and Lateral 73 Construction see Section J for attachments. Product/Service Code: C211 Product/Service Description: ARCHITECT AND ENGINEERING- GENERAL: LANDSCAPING, INTERIOR LAYOUT, AND DESIGNING				

SECTION D – PACKAGING AND MARKING

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END OF SECTION D – PACKAGING AND MARKING

SECTION E – INSPECTION AND ACCEPTANCE

E.1. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Reference

- FAR 52.246-12 Inspection of Construction (August 1996)

E.2. Department of the Interior Regulation (DIAR) Clauses/Provisions Incorporated by Full Text

- DIAR 1452.204-70 Release of Claims - Department of the Interior (July 1996)

As prescribed in 1404.804-70, insert the following clause:

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

END OF SECTION E – INSPECTION AND ACCEPTANCE

SECTION F – DELIVERIES OR PERFORMANCE

F.1. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Reference

- FAR 52.211-13 Time Extensions (September 2000)
- FAR 52.236-15 Schedules for Construction Contracts (April 1984)
- FAR 52.242-14 Suspension of Work (April 1984)

F.2. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Full Text

- FAR 52.211-10 Commencement, Prosecution, and Completion of Work (April 1984)

The Contractor shall be required to (a) commence work under this contract receipt of the award, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than seven hundred fifty (750) calendar days. The time stated for completion shall include final cleanup of the premises.

(End of Clause)

- FAR 52.211-12 Liquidated Damages—Construction (September 2000)

If the Contractor fails to complete the work within the time specified in the contract, the Contractor will pay liquidated damages to the Government in the amount of \$2,000.00 for each calendar day of delay until the work is completed or accepted.

If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of Clause)

END OF SECTION F – DELIVERIES OR PERFORMANCE

SECTION G – CONTRACT ADMINISTRATION DATA

G.1. Department of the Interior Regulation (DIAR) Clauses/Provisions Incorporated by Full Text

- DIAR 1452.201-70 Authorities and Delegations (September 2011)

As prescribed in section 1401.670-1, insert the following clause:

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers having been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

G.2. Local Clauses

- Electronic Invoicing and Payment Requirements – Invoice Processing Platform (IPP) (April 2013)

Payment requests must be submitted electronically through the U.S. Department of the Treasury's Invoice Processing Platform system (IPP). "Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

- See FAR 52.232-10

The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date.

Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131. If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

END OF SECTION G – CONTRACT ADMINISTRATION DATA

SECTION H – SPECIAL CONTRACT REQUIREMENTS

RESERVED

END OF SECTION H – SPECIAL CONTRACT REQUIREMENTS

SECTION I – CONTRACT CLAUSES

I.1. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Reference

- FAR 52.202-1 Definitions (June 2020)
- FAR 52.203-3 Gratuities (April 1984)
- FAR 52.203-5 Covenant Against Contingent Fees (May 2014)
- FAR 52.203-6 Restrictions on Subcontractor Sales to the Government (June 2020)
Alternate I (November 2021)
- FAR 52.203-7 Anti-Kickback Procedures (June 2020)
- FAR 52.203-8 Cancellation, Recission, and Recovery of Funds for Illegal or Improper Activity (May 2014)
- FAR 52.203-10 Price or Fee Adjustment for Illegal or Improper Activity (May 2014)
- FAR 52.203-12 Limitation on Payments to Influence Certain Federal Transactions (June 2020)
- FAR 52.203-13 Contractor Code of Business Ethics and Conduct (November 2021)
- FAR 52.203-14 Display of Hotline Poster(s) (November 2021)
- FAR 52.203-15 Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (June 2010)
- FAR 52.203-16 Preventing Personal Conflicts of Interest (June 2020)
- FAR 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- FAR 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (January 2017)
- FAR 52.204-9 Personal Identity Verification of Contractor Personnel (January 2011)
- FAR 52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards (June 2020)
- FAR 52.204-13 System for Award Management Maintenance (October 2018)
- FAR 52.204-14 Service Contract Reporting Requirements (October 2016)
- FAR 52.204-18 Commercial and Government Entity Code Maintenance (August 2020)
- FAR 52.204-19 Incorporation by Reference of Representations and Certifications (December 2014)
- FAR 52.204-23 Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Dec 2023)
- FAR 52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (November 2021)
- FAR 52.207-3 Right of First Refusal of Employment (May 2006)
- FAR 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (November 2021)
- FAR 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (October 2018)
- FAR 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (November 2015)
- FAR 52.210-1 Market Research (November 2021)
- FAR 52.215-2 Audit and Records-Negotiation (June 2020)
- FAR 52.215-8 Order of Precedence-Uniform Contract Format (October 1997)
- FAR 52.215-11 Price Reduction for Defective Certified Cost or Pricing Data-Modifications (June 2020)

- FAR 52.215-13 Subcontractor Certified Cost or Pricing Data-Modifications (June 2020)
- FAR 52.215-21 Subcontractor Certified Cost or Pricing Data-Modifications (November 2021)
- FAR 52.219-14 Limitations on Subcontracting (October 2022)
- FAR 52.219-28 Post-Award Small Business Program Representation (Feb 2024)
- FAR 52.222-3 Convict Labor (June 2003)
- FAR 52.222-4 Contract Work Hours and Safety Standards-Overtime Compensation (May 2018)
- FAR 52.222-5 Construction Wage Rate Requirements- Secondary Site of the Work (May 2014)
- FAR 52.222-6 Construction Wage Rate Requirements (August 2018)
- FAR 52.222-7 Withholding of Funds (May 2014)
- FAR 52.222-8 Payrolls and Basic Records (July 2021)
- FAR 52.222-9 Apprentices and Trainees (July 2005)
- FAR 52.222-10 Compliance with Copeland Act Requirements (February 1988)
- FAR 52.222-11 Subcontractors (Labor Standards) (May 2014)
- FAR 52.222-12 Contract Termination-Debarment (May 2014)
- FAR 52.222-13 Compliance with Construction Wage Rate Requirements and Related Regulations (May 2014)
- FAR 52.222-14 Disputes Concerning Labor Standards (February 1988)
- FAR 52.222-15 Certification of Eligibility (May 2014)
- FAR 52.222-23 Notice of Requirement for Affirmative Action to Ensure Equal Employment (February 1999)
- FAR 52.222-26 Equal Opportunity (September 2016)
- FAR 52.222-27 Affirmative Action Compliance Requirements for Construction (April 2015)
- FAR 52.222-37 Employment Reports on Veterans (June 2020)
- FAR 52.222-40 Notification of Employee Rights under the National Labor Relations Act (December 2010)
- FAR 52.222-50 Combating Trafficking in Persons (November 2021)
- FAR 52.222-54 Employment Eligibility Verification (May 2022)
- FAR 52.222-55 Minimum Wages Under Executive Order 13658 (January 2022)
- FAR 52.222-62 Paid Sick Leave Under Executive Order 13706 (January 2022)
- FAR 52.223-3 Hazardous Material Identification and Material Safety Data (February 2021)
- FAR 52.223-5 Pollution Prevention and Right-to-Know Information (May 2024)
- FAR 52.223-7 Notice of Radioactive Materials (Jan 1997)
- FAR 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024)
- FAR 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024)
- FAR 52.223-19 Compliance with Environmental Management Systems (May 2011)
- FAR 52.223-21 Foams (May 2024)
- FAR 52.225-13 Restrictions on Certain Foreign Purchases (February 2021)
- FAR 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

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- FAR 52.227-1 Authorization and Consent (June 2020)
- FAR 52.227-2 Notice and Assistance Regarding Patent and Copyright Infringement (June 2020)
- FAR 52.227-4 Patent Indemnity-Construction Contracts (December 2007)
- FAR 52.227-23 Rights to Proposal Data (Technical) (June 1987)
- FAR 52.228-2 Additional Bond Security (October 1997)
- FAR 52.228-5 Insurance-Work on a Government Installation (January 1997)
- FAR 52.228-11 Individual Surety—Pledge of Assets (February 2021)
- FAR 52.228-12 Prospective Subcontractor Requests for Bonds (December 2022)
- FAR 52.228-13 Alternative Payment Protections (July 2000)
- FAR 52.228-14 Irrevocable Letter of Credit (November 2014)
- FAR 52.228-15 Performance and Payment Bonds-Construction (June 2020)
- FAR 52.229-3 Federal, State, and Local Taxes (February 2013)
- FAR 52.232-5 Payments under Fixed-Price Construction Contracts (May 2014)
- FAR 52.232-17 Interest (May 2014)
- FAR 52.232-23 Assignment of Claims (May 2014)
- FAR 52.232-27 Prompt Payment for Construction Contracts (January 2017)
- FAR 52.232-33 Payment by Electronic Funds Transfer-System for Award Management (October 2018)
- FAR 52.232-39 Unenforceability of Unauthorized Obligations (June 2013)
- FAR 52.233-1 Disputes (May 2014)
 - Alternate I (December 1991)
- FAR 52.233-3 Protest after Award (August 1996)
- FAR 52.233-4 Applicable Law for Breach of Contract Claim (October 2004)
- FAR 52.236-1 Performance of Work by the Contractor (April 1984)
- FAR 52.236-2 Differing Site Conditions (April 1984)
- FAR 52.236-3 Site Investigation and Conditions Affecting the Work (April 1984)
- FAR 52.236-5 Material and Workmanship (April 1984)
- FAR 52.236-6 Superintendence by the Contractor (April 1984)
- FAR 52.236-7 Permits and Responsibilities (November 1991)
- FAR 52.236-8 Other Contracts (April 1984)
- FAR 52.236-9 Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (April 1984)
- FAR 52.236-10 Operations and Storage Areas (April 1984)
- FAR 52.236-11 Use and Possession Prior to Completion (April 1984)
- FAR 52.236-12 Cleaning Up (April 1984)
- FAR 52.236-13 Accident Prevention (November 1991)
- FAR 52.236-14 Availability and Use of Utility Services (April 1984)
- FAR 52.236-15 Schedules for Construction Contracts (April 1984)
- FAR 52.236-16 Quantity Surveys (April 1984)
- FAR 52.236-17 Layout of Work (April 1984)
- FAR 52.236-21 Specifications and Drawings for Construction (February 1997)
- FAR 52.236-26 Preconstruction Conference (February 1995)
- FAR 52.242-13 Bankruptcy (July 1995)
- FAR 52.243-4 Changes (June 2007)
- FAR 52.243-7 Notification of Changes (January 2017)
- FAR 52.244-5 Competition in Subcontracting (December 1996)
- FAR 52.244-6 Subcontracts for Commercial Products and Commercial Services (Feb 2024)

- FAR 52.245-9 Use and Charges (April 2012)
- FAR 52.246-21 Warranty of Construction (March 1994)
Alternate I (April 1984)
- FAR 52.248-3 Value Engineering-Construction (October 2020)
Alternate I (April 1984)
- FAR 52.249-2 Termination for Convenience of the Government (Fixed-Price) (April 2012)
Alternate I (September 1996)
- FAR 52.249-10 Default (Fixed-Price Construction) (April 1984)
- FAR 52.250-1 Indemnification Under Public Law 85-804 (April 1984)
- FAR 52.253-1 Computer Generated Forms (Jan 1991)

I.2. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Full Text

- FAR 52.222-35 Equal Opportunity for Veterans (June 2020)

(a) *Definitions.* As used in this clause-

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) [22.1301](#).

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR [22.1303](#)(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

- FAR 52.222-36 Equal Opportunity for Workers with Disabilities (June 2020)

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) [22.1408](#)(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will

be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

- FAR 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025)

(a) Definitions. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR 3201.2[7 CFR 4270.2]).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

(1) That are listed by USDA in a procurement guideline (7 CFR part 3201, subpart B) available at <https://www.biopreferred.gov/resources/categories.html>; and

(2) For which USDA has provided purchasing recommendations (available at <https://www.biopreferred.gov> [or 7 CFR part 4270]).

(b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

(1) October 31 of each year during contract performance; and

(2) At the end of contract performance.

- FAR 52.223-23 Sustainable Products and Services (May 2024) [Deviation Feb 2025]

(a) *Definitions*. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7

U.S.C. 8101) ~~(7 CFR 3201.2)~~ **[7 CFR part 4270.2)]**.

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means ~~products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:~~

(1) Statutory purchasing programs.

~~(i)~~ **[(1)]** Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

~~(ii)~~ **[(2)]** Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, Page 27 of 28 subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

~~(iii)~~ **[(3)]** Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR part 3201 **[7 CFR part 4270]**) (<https://www.biopreferred.gov>).

~~(iv)~~ **[(4)]** Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap>).

(2) Required EPA purchasing programs.

~~(i) WaterSense® labeled (water efficient) products and services (<https://www.epa.gov/watersense/watersense-products>).~~

~~(ii) Safer Choice-certified products (products that contain safer chemical ingredients) (<https://www.epa.gov/saferchoice/products>).~~

~~(iii) Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-eolabels-federal-purchasing>).~~

(b) Requirements.

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

- (i) Delivered to the Government;
- (ii) Furnished for use by the Government;

- (iii) Incorporated into the construction of a public building or public work; and
- (iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

~~(3)(i) Except as provided in paragraph (b)(3)(ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and~~

~~(ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.~~

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which **[statutory]** purchasing programs apply to a specific product or service.

(End of clause)

- FAR 52.225-9 Buy American—Construction Materials (October 2022)

(a) *Definitions.* As used in this clause—

Commercially available off-the-shelf (COTS) item—

(1) Means any item of supply (including construction material) that is—

(i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) [2.101](#));

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies.

However, emergency life safety systems, such as emergency lighting, fire alarm,

and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Domestic construction material means—

- (1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-
 - (i) An unmanufactured construction material mined or produced in the United States; or
 - (ii) A construction material manufactured in the United States, if-
 - (A) The cost of its components mined, produced, or manufactured in the United States exceeds 55 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or
 - (B) The construction material is a COTS item; or
- (2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners.

Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components". *Fastener* means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins,

rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference. (1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR [12.505\(a\)\(2\)](#)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

[Contracting Officer to
list applicable excepted materials or indicate "none"]

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1) (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (dollars)*
Item1:			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item2:			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)*].
 [List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]
 [Include other applicable supporting information.]

(End of clause)

- FAR 52.225-10 Notice of Buy American Requirement-Construction Materials (May 2014)

(a) *Definitions*. "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials" (Federal Acquisition Regulation (FAR) clause [52.225-9](#)).

(b) *Requests for determinations of inapplicability*. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR [52.225-9](#) in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR [52.225-9](#).

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers. (1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR [52.225-9](#), the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate [Standard Form 1442](#) for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR [52.225-9](#) for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR [52.225-9](#) does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of Provision)

- FAR 52.225-11 Buy American-Construction Materials under Trade Agreements (Nov 2023)

(a) *Definitions.* As used in this clause—

Caribbean Basin country construction material means a construction material that—

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item—

- (1) Means any item of supply (including construction material) that is—
- (i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) [2.101](#));
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in [46 U.S.C.40102\(4\)](#), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Designated country means any of the following countries:

- (1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);
- (2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Canada, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or

Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

“Designated country construction material” means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means—

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if—

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 55 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign.

If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of “cost of components”.

Fastener means a hardware device that mechanically joins or affixes two or more

objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a least developed country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

- (1) Is wholly the growth, product, or manufacture of a WTO GPA country; or
- (2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials. (1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance

with [41 U.S.C.1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR [12.505\(a\)\(2\)](#)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

[Contracting Officer to list applicable excepted materials or indicate "none"]

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute. (1) (i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data.* To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item1			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[* Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)].

[List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.]

[*Include other applicable supporting information.*]

(End of clause)

- FAR 52.225-12 Notice of Buy American Requirement—Construction Materials Under Trade Agreements (May 2014)

(a) Definitions. “Commercially available off-the-shelf (COTS) item,” “construction material,” “designated country construction material,” “domestic construction material,” and “foreign construction material,” as used in this provision, are defined in the clause of this solicitation entitled “Buy American--Construction Materials Under Trade Agreements” (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) Requests for determination of inapplicability. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers. (1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers. (1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested—

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

- FAR 52.252-2 Clauses Incorporated By Reference (February 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov/content/regulations>

(End of clause)

- FAR 52.252-4 Alterations in Contract (April 1984)

Portions of this contract are altered as follows:

(End of clause)

- FAR 52.252-6 Authorized Deviations in Clauses (November 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR Chapter 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

I.3. Department of the Interior Regulation (DIAR) Clauses/Provisions Incorporated by Full Text

- DIAR 1452.203-70 Restrictions on Endorsements-Department of the Interior (July 1996)

As prescribed in 1403.570-3, insert the following clause:

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government, or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the

Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

- DIAR 1452.215-70 Examination of Records by the Department of the Interior (April 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

- DIAR 1452.228-70 Liability Insurance - Department of the Interior (July 1996)

As prescribed in 1428.301, insert the following clause:

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$100,000.00 each person
\$500,000.00 each occurrence
\$500,000.00 property damage

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance.

The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(End of clause)

- DIAR 1452.236-70 Prohibition Against Use of Lead-based Paint (July 1996)

As prescribed in 1436.570(b), insert the following clause:

Paint containing more than .06 percent by weight of lead in paint, or the equivalent measure of lead in the dried film of paint already applied, shall not be used in the construction or rehabilitation of residential structures under this contract or any resulting subcontracts.

(End of clause)

END OF SECTION I – CONTRACT CLAUSES

SECTION J – LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

ATTACHMENT	TITLE OF DOCUMENT OR FORM	PAGES
1	PRICING SCHEDULE	4
2	MAIN CANAL CHECKS STATEMENT OF WORK	6
3	LATERAL 73-36 STATEMENT OF WORK	3
4	CRIP MC185 & 270 SPECIFICATIONS	405
5	CRIP MC420 SPECIFICATIONS	385
6	CRIP MC420 ELECTRICAL TRANSMISSION TECHNICAL SPECIFICATIONS	234
7	LATERAL 73-36 SPECIFICATIONS	156
8	CRIP MC185 DRAWINGS	37
9	CRIP MC270 DRAWINGS	35
10	CRIP MC420 DRAWINGS	40
11	CRIP MC420 ELECTRICAL TRANSMISSION DRAWINGS	106
12	LATERAL 73-36 DRAWINGS	32
13	HISTORIC DRAWINGS MC270	4
14	HISTORIC DRAWINGS MC420	8
15	HISTORIC DRAWINGS OWNER FURNISHED GATES	1
16	MC CHECKS GEOTECHNICAL REPORT	108
17	LATERAL 73-36 GEOTECHNICAL REPORT	49
18	MC CHECKS ASBESTOS ASSESSMENT SURVEY REPORT	42

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19	LATERAL 73-36 ASBESTOS AND LEAD-BASED PAINT SURVEY REPORT	35
20	GROUNDWATER MONITORING REPORT	113
21	DOL WAGE RATES AZ20260007 & AZ20260052	10
22	PRE-AWARD SITE VISIT OVERVIEW AND FIELD REVIEW	59
23	QUESTIONS AND ANSWERS LOG	1
24	STANDARD FORM 24 BID BOND FORM	2
25	STANDARD FORM 25 PERFORMANCE BOND FORM	2
26	STANDARD FORM 25A PAYMENT BOND FORM	2

END OF SECTION J – LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

**SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER
STATEMENTS OF OFFERORS OR RESPONDENTS**

K.1. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Reference

- FAR 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (September 2007)
- FAR 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (January 2017)
- FAR 52.204-17 Ownership or Control of Offeror (August 2020)
- FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations-Representation (November 2015)
- FAR 52.222-38 Compliance with Veterans Employment Reporting Requirements (February 2016)
- FAR 52.223-4 Recovered Material Certification (May 2008)
- FAR 52.223-22 Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation (December 2016)
- FAR 52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran Representation and Certifications (June 2020)
- FAR 52.236-28 Preparation of Proposals-Construction (October 1997)

K.2. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Full Text

- FAR 52.203-2 Certificate of Independent Price Determination (April 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2) (i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision

_____ *[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];*

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies paragraph (a)(2) of this provision, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the dis-closure.

(End of provision)

- FAR 52.204-8 Annual Representations and Certifications (Jan 2025)
[DEVIATION FEB 2025]

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 237990, Other Heavy and Civil Engineering Construction.

(2) The small business size standard is \$45,000,000.00.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 237990 if the acquisition—

(i) Is not set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v)52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A)Are not set aside for small business concerns;

(B)Exceed the simplified acquisition threshold; and

(C)Are for contracts that will be performed in the United States or its outlying areas.

(vi)52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii)52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii)52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix)52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x)52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi)52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii)52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A)The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B)The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C)The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii)52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv)52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv)52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi)52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii)52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii)52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix)~~52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals Representation. This provision applies to solicitations that include the provision at 52.204-7. [DEVIATION]~~

(xx)52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi)52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii)52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii)52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv)~~52.225-25~~, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv)~~52.226-2~~, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

X (i)~~52.204-17~~, Ownership or Control of Offeror.

___ (ii)~~52.204-20~~, Predecessor of Offeror.

___ (iii)~~52.222-18~~, Certification Regarding Knowledge of Child Labor for Listed End Products.

___ (iv)~~52.222-48~~, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

___ (v)~~52.222-52~~, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

___ (vi)~~52.227-6~~, Royalty Information.

___ (A)Basic.

___ (B)Alternate I.

___ (vii)~~52.227-15~~, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

- FAR 52.204-20 Predecessor of Offeror (August 2020)

(a) *Definitions.* As used in this provision—

Commercial and Government Entity (CAGE) code means—

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(End of provision)

- FAR 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (November 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications

equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such

equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications

services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

- FAR 52.204-26 Covered Telecommunications Equipment or Services-Representation (October 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

- FAR 52.209-5 Certification Regarding Responsibility Matters (August 2020)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see [52.209-7](#), if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision;

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at [9.104-5\(a\)\(2\)](#) for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) *Examples.*

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. § 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. § 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. § 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has ☐ has not ☐, within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions). This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May

Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

- FAR 52.209-7 Information Regarding Responsibility Matters (October 2018)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of provision)

- FAR 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (February 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

- FAR 52.209-13 Violation of Arms Control Treaties or Agreements-Certification (November 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation [2.101](#).

(b) *Certification.* [Offeror shall check either (1) or (2).]

___ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

___ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report

are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under [22 U.S.C. 2593e](#)(d) or (e); or

(ii) Determined under [22 U.S.C. 2593e](#)(g)(2) that the entity has ceased all activities for which measures were imposed under [22 U.S.C. 2593e](#)(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

- FAR 52.215-6 Place of Performance (October 1997)

(a) The offeror or respondent, in the performance of any contract resulting from this solicitation, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address, City, State, County, ZIP Code)	Name and Address of Owner and Operator of the Plant or Facility if Other than Offeror or Respondent

(End of provision)

- FAR 52.219-1 Small Business Program Representations (Feb 2024)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) "Service-disabled veteran" means a veteran, as defined in [38 U.S.C.101\(2\)](#), with a disability that is service-connected, as defined in [38 U.S.C.101\(16\)](#).

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding \$750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at [38 U.S.C.101\(2\)](#)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 237990, Other Heavy and Civil Engineering Construction.

(2) The small business size standard is \$45,000,000.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 237990, if the acquisition—

- (i) Is not set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

- (i) it ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#).
[*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#).
[*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c).
[*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(6) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.*] The offeror represents as part of its offer that

(i) It ☐ is, ☐ is not a service-disabled veteran-owned small business concern; or

(ii) It ☐ is, ☐ is not a service-disabled veteran-owned joint venture that complies with the requirements of [13 CFR 125.18\(b\)\(1\)](#) and [\(2\)](#).
[*The offeror shall enter the name and unique entity identifier of each party to the*

joint venture: __.] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through [\(c\)](#). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]* Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) *Notice.* Under [15 U.S.C.645\(d\)](#), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

(1) Be punished by imposition of fine, imprisonment, or both;

(2) Be subject to administrative remedies, including suspension and debarment; and

(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

- FAR 52.222-22 Previous Contracts and Compliance Reports (February 1999)

The offeror represents that-

It ☐ has, ☐ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation;

It ☐ has, ☐ has not filed all required compliance reports; and

Representations indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained before subcontract awards.

(End of provision)

- FAR 52.223-1 Biobased Product Certification (May 2004) [Deviation Feb 2025]

As required by the Farm Security and Rural Investment Act of 2002 ([7 U.S.C. 8101\(4\)](#)) and the Energy Policy Act of 2005 ([7 U.S.C. 8102\(a\)\(2\)\(F\)](#)), the offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture in [7 CFR part 3201, subpart B](#)) at <https://www.biopreferred.gov/resources/categories.html> to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

**END OF SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER
STATEMENTS OF OFFERORS OR RESPONDENTS**

SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS OR RESPONDENTS

L.1. General:

To assure timely and equitable evaluation of the proposal, the offeror shall follow the instructions contained herein. Offerors are required to meet all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements, in addition to those identified as evaluation factors or subfactors. Failure to meet all requirements may result in an offer being ineligible for award. The response must consist of two (2) separate parts:

L.1.1. Volume 1 - Price Proposal

L.1.2. Volume 2 - Technical Proposal

L.2. Price Evaluation

The contracting officer will examine the price of the lowest priced technically acceptable offeror using one or more of the proposal analysis techniques described in FAR 15.404-1 to establish fair and reasonable pricing. After selection, the selected contractor may be required to submit additional price information to support a determination of fair and reasonable price as a matter of administration and not as part of the selection process.

L.3. Submittal of Proposals and Inquiries

L.3.1. Offerors must submit (1) electronic proposal submission via email. *Offerors must submit two (2) separate volumes: Volume I - Price Proposal and Volume II - Technical Proposal.*

L.3.2. The Government will not accept a facsimile proposal.

L.3.3. Any questions relating to this solicitation shall be submitted to the Contracting Officer at william.mclaughlin@bia.gov.

L.4. Sufficient Detail

The proposal must be clear, concise, and must include sufficient detail for effective evaluation and for sustaining the validity of stated claims. The proposal should not simply rephrase or restate the Government's requirements but must provide convincing rationale to address how the offeror intends to meet these requirements. Offerors must assume that the Government has no prior knowledge or experience. The Government will base its evaluation on the information presented in the offeror's proposal. The Government reminds the offeror that the Government reserves the right to award this effort based on the initial proposal as received, without discussions.

L.5. Proposal Format

L.5.1. An offeror's proposal must consist of two separate volumes:

Volume	Section/Title	Copies	Size Limit
I	Price Proposal	1 Copy Emailed	N/A
II	Technical Proposal	1 Copy Emailed	40 pages

L.5.2. Documents submitted in response to the solicitation must be fully responsive to and consistent with the following:

L.5.2.1. Requirements of the solicitation and Government standards and regulations.

L.5.2.2. Evaluation factors for award.

L.5.2.3. The proposal must not exceed the limits stated above. If the page limitations are exceeded, the pages in excess of the limit will not be read or considered in the evaluation of the proposal. The Government will not accept any changes to the contractor's proposal after the due date for proposals (See FAR 52.212-1(f) for further information regarding late proposals). If discussions become necessary, page limitations may be placed on responses to discussions. The specific page limits for discussion responses will be identified in the letters forwarding the responses to the offerors.

L.5.3. Paper, Page Size and Format: A page must consist of a single page of 8.5 x 11" dimensions. Typing shall be Times New Roman Font, size 12.

L.5.3.1. MS-Word Format. Documents submitted using a format compatible with Microsoft Office 2010 (DOCX) default format.

L.5.3.2. Excel files must be compatible with Microsoft Excel 2010 or newer format.

L.5.3.3. PDF Format: Submit PDF documents compatible with Adobe Acrobat. Do NOT submit any documents in PDF format copied as "images." All PDF files must be created in such a way to enable the textural search and copy functions in Adobe Acrobat.

L.5.4. Each volume must include a cover page with the following information:

L.5.4.1. Volume number and name of volume

L.5.4.2. Solicitation title

L.5.4.3. Offeror's name, address, and contact information

L.5.4.4. Date of proposal and validity date

L.5.4.5. Unique Entity Identifier (UEI)

L.5.5. Each volume must contain a detailed table of contents to delineate the subparagraphs within that volume. All volumes must contain page numbers. Offerors must use a standard page numbering system. Each volume must contain a glossary of all abbreviations and acronyms used, with a definition for each.

L.6. Specific Instructions

L.6.1. VOLUME I -- PRICE PROPOSAL – The Contracting Officer (CO) will evaluate Offeror’s proposal for price reasonableness and completeness. A price is reasonable if, in its nature and amount, it does not exceed (or undervalue) that work which would be incurred, by a prudent person, in the conduct of competitive business. A price proposal is complete when all price/cost data as outlined in this solicitation, in the required format, has been submitted.

L.6.1.1. Acknowledgement of any and all amendments to this solicitation and a statement that you consent to all terms of this solicitation.

L.6.1.2. A price schedule with unit and extended prices shall be submitted. All dollar amounts proposed must be rounded to the nearest dollar by each offeror. If any rounding is overlooked, the government will round all dollars to the nearest dollar.

L.6.1.3. FAR provision 52.204-8, “Annual Representations and Certifications” must be completed and returned along with your proposal. Note that registration in the online representations and certifications program at <https://www.sam.gov> also meets this requirement and can be provided in lieu of FAR 52.204-8. FAR 52.204-24 “Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment” is also covered by <https://www.sam.gov> representation.

L.6.1.4. A bid guarantee in conformance with FAR 52.228-1. Bid guarantees shall be submitted electronically with the proposal. No hard copy bid guarantees will be accepted. The amount of the bid guarantee shall be 20% of the bid price or \$2,000,000.00, whichever is less.

L.6.2. VOLUME II -- TECHNICAL PROPOSAL – The technical proposal must be specific and complete. Legibility, clarity and coherence are very important. The proposal should not simply rephrase or restate the government’s requirements, but rather must provide convincing rationale to address how the offeror intends to meet these requirements. Offerors must assume the government has no prior knowledge of their capabilities, work processes, facilities, and experience. The government will base its evaluation on the information presented in the offeror’s proposal. Elaborate brochures or documentation binding, detailed artwork, or other embellishments are unnecessary and are not desired. See the below Basis for Contract Award portion for additional information.

Volume II shall include:

L.6.2.1. Comprehensive technical and management approach to accomplish the project.

L.6.2.1.1. A Technical Approach narrative that addresses, at a minimum: the construction approach, risk management, logistical requirements, environmental compliance, safety, quality control, and resolution of potential issues and challenges.

L.6.2.1.2. A Key Project Management/Technical Support description that addresses key personnel, team partners, and/or subcontractors. Include organizational charts identifying key roles, the responsibilities, and resumes of those personnel. Limited to 5 pages per resume.

L.6.2.1.3. Proposed Contract Duration: The Government will evaluate the contract duration, as proposed by the Offeror, not to exceed the maximum allowed duration shown in the solicitation. Summary Schedule: The Government will evaluate the summary schedule for construction. The length of the schedule must match the proposed contract duration, with reasonable allowances for contingencies.

L.6.2.1.4. Relevant Experience and Past Performance: The Offeror's experience in construction of facilities similar to this project. Project examples must be determined to be recent and relevant to this project and clearly demonstrate a contractor's capabilities to construct a project of this nature and execute the project successfully and on schedule.

L.6.2.2. Any exceptions or contingencies to the work described in the SOW shall be listed in full detail.

L.7. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Reference

- FAR 52.204-7 System for Award Management (October 2018)
- FAR 52.204-16 Commercial and Government Entity Code Reporting (August 2020)
- FAR 52.204-22 Alternative Line-Item Proposal (January 2017)
- FAR 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (October 2016)
- FAR 52.211-7 Alternatives to Government-Unique Standards (November 1999)
- FAR 52.215-1 Instructions to Offerors-Competitive Acquisition (November 2021)
- FAR 52.216-27 Single or Multiple Awards (October 1995)
- FAR 52.228-1 Bid Guarantee (September 1996)
- FAR 52.228-17 Individual Surety Pledge of Assets (Bid Guarantee) (February 2021)
- FAR 52.232-13 Notice of Progress Payments (April 1984)
- FAR 52.236-27 Site Visit (Construction) (February 1995)

L.8. Federal Acquisition Regulation (FAR) Clauses/Provisions Incorporated by Full Text

- FAR 52.211-3 Availability of Specifications Not Listed in the GSA Index of Federal

Specifications, Standards and Commercial Item Descriptions (June 1988)

The specifications cited in this solicitation may be obtained from:

(Activity) address) _____

(Telephone number) _____

(Person to be contacted) _____

The request should identify the solicitation number and the specification requested by date, title, and number, as cited in the solicitation.

(End of clause)

- FAR 52.216-1 Type of Contract (April 1984)

The Government contemplates awarding one firm fixed price contract resulting from this solicitation.

- FAR 52.233-2 Service of Protest Department of the Interior (July 1996) (Deviation)

(a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Department of the Interior Bureau of Indian Affairs
Contracting Office
12220 Sunrise Valley Drive
Reston, VA 20191

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW, Room 6511, Washington, DC 20240.

(End of provision)

- FAR 52.252-1 Solicitation Provisions Incorporated by Reference (February 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address:

<https://www.acquisition.gov/content/regulations>

(End of provision)

- FAR 52.252-3 Alternations in Solicitation (April 1984)

Portions of this solicitation are altered as follows:

(End of clause)

- FAR 52.252-5 Authorized Deviations in Provisions (November 2020)

The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

The use in this solicitation of any Department of the Interior Regulation (DIAR) (48 CFR Chapter14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

L.9. Department of the Interior Regulation (DIAR) Clauses/Provisions Incorporated by Full Text

- DIAR 1452.215-71 Use and Disclosure of Proposal Information - Department of the Interior (April 1984)

As prescribed in 1415.207-70, insert the following provision:

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the Offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the Offeror believes to be exempt from disclosure under the Freedom of Information Act. The Offeror requests that this information not be disclosed to the public, except as may be required by law. The Offeror also requests that this information not be used in whole or part by the Government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the Offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The Offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the Offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an Offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the Offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the Offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The Offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the Offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the Offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the Offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an Offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the Offeror had intended to mark, but that markings were omitted from the Offeror's proposal due to clerical error.

(End of provision)

**END OF SECTION L – INSTRUCTIONS, CONDITIONS, AND NOTICES TO
OFFERORS OR RESPONDENTS**

SECTION M – EVALUATION FACTORS FOR AWARD

M.1. BASIS FOR CONTRACT AWARD

M.1.1. This is a competitive best value source selection using Lowest Price Technically Acceptable procedures conducted in accordance with FAR Part 15, and the Department of the Interior Acquisition Regulation (DIAR) Part 1415. The Government intends to award without discussions. If discussions with Offerors are required, a competitive range may be established, and discussions conducted with all Offerors in the competitive range.

M.2. EVALUATION PROCEDURES

M.2.1. Proposals will be evaluated on the basis of the evaluation factors listed below using the Economical Lowest Price Technically Acceptable method. That is, price will be evaluated first, and only the lowest price offer will be examined for technical acceptability. If the lowest price offer is technically acceptable, award will be made to that offeror and no other offers will be reviewed for technical acceptability. If the lowest price offer is not technically acceptable, the second lowest priced offer will be reviewed for technical acceptability. The government will proceed in this form and fashion until an offer is determined to be technically acceptable. Therefore, some offers that do not present the lowest price may not be reviewed for technical acceptability.

The following areas will be evaluated:

M.2.1.1. Total price reasonableness and completeness. The Government reserves its right to evaluate for price realism.

M.2.1.2. Technical – (Acceptable/Unacceptable)

M.2.1.2.1. Technical Approach

M.2.1.2.2. Key Project Management/Technical Support

M.2.1.2.3. Proposed Contract Duration and Summary Schedule

M.2.1.2.4. Relevant Experience and Past Performance

M.2.2. For the best value determination, all technical factors are approximately equal importance. All evaluation factors other than price, when combined, are approximately equal to price.

M.3. VOLUME 1 - PRICE

M.3.1. FACTOR 1: PRICE

M.3.1.1. The contract type awarded from this solicitation will be Firm-Fixed-Price. A price reasonableness analysis will be performed by the Government to determine that the

proposal prices offered are complete, fair, and reasonable. Price reasonableness will be determined in accordance with FAR 15.305(a)(1). Normally, competition establishes price reasonableness. Comparison of the proposed prices is expected to satisfy the requirement to perform a price analysis, however, the Government may, if necessary, analyze the Offeror's price breakdown to establish reasonableness of an otherwise successful offeror's price. The Government reserves the right to conduct price realism analysis. The Government will review the proposed price in the context of the technical proposal. Any inconsistencies between proposed performance and price must be clearly justified. For example, if unique and innovative approaches are the basis for an abnormally low or high price, the nature of the approaches and their impact to the proposed price must be clear in the proposal.

M.3.1.2. For purposes of award, the total evaluated price will include all unit prices for the contract in its entirety. Offerors must submit pricing for all line items. The total evaluated price for purposes of the best value will be determined by the total sum of the line items, to include all options.

M.4. VOLUME II – TECHNICAL EVALUATION

M.4.1. The technical proposal will be evaluated on a “acceptable” or “unacceptable” basis.

M.4.2. The Government will rate any technical proposals that are evaluated according to the chart listed.

DEFINITION	RATING
Passes (or meets) minimum standard requirements	Acceptable
Fails to meet minimum standard requirements	Unacceptable

M.4.3 The lowest priced, technically acceptable offer will be selected for award.

M.4.4. If the lowest priced, technically acceptable offer has a price that is not reasonable or complete the Government may find that offer un-awardable and may conduct discussions or cancel the solicitation.

M.5. FACTOR 2: TECHNICAL APPROACH

M.5.1. The Government will evaluate the strengths, weaknesses and any deficiencies in the approach. The Offeror MUST, at minimum, address the key points listed herein. Failure to address all of the key points will result in an Unacceptable rating. The Government will evaluate Offeror's understanding of the requirements described in the approach and technical specifications of the Solicitation and the capability to execute the project. At a minimum, the narrative must:

1. Be logical and free of contradictory or conflicting information.
2. Describe an approach to resourcing, organizing, and communicating on the proposed

project that is consistent with requirements in the project description.

3. Provide a level of detail and specificity to this project that demonstrates that the Offeror understands the requirements.

M.5.2. This factor may be more highly rated if the narrative describes an approach to resourcing, organizing, executing, and communicating on the proposed project that reduces the risk of unsuccessful contract performance.

M.6. FACTOR 3: KEY PROJECT MANAGEMENT/TECHNICAL SUPPORT

M.6.1. Key Project Management/Technical Support: The standard is met when the proposal addresses all of the elements listed with a qualified team of key personnel, teaming partners, and/or subcontractors that collectively can accomplish the work described in the Statement of Work. Proposal of unqualified personnel, illogical teaming structures, or insufficient resources to accomplish the work will result in an unacceptable rating. The proposal shall demonstrate experience by the proposed team in successful execution of the following project aspects within the past 5 years.

M.7. FACTOR 4: PROPOSED CONTRACT DURATION & SUMMARY SCHEDULE

M.7.1. Proposed Contract Duration: The Government will evaluate the contract duration, as proposed by the Offeror, not to exceed the maximum allowed duration shown in the solicitation. In assessing the reasonableness of the proposed contract duration, the Government may take into account how well the proposed summary schedule supports the proposed duration, as well as use other information, such as but not limited to independent judgment concerning logic, constraints, and typical construction durations. The Government will consider an unreasonably condensed contract duration, which places additional cost or schedule risk on the Government, or which may create a risk of contract or performance failure, as a significant weakness or a deficiency, depending upon the evaluators' judgment.

M.7.2. Summary Schedule: The Government will evaluate the summary schedule for construction. The length of the schedule must match the proposed contract duration, with reasonable allowances for contingencies. A schedule drastically shorter than the proposed contract duration may indicate the Offeror is placing additional risk on the Government for any delays between the scheduled completion date and the required contract completion period. Both parties shall assume field overhead costs are included in the contract price for the full proposed contract duration. The Government will evaluate the schedule to assess the strength of understanding of the project scope, restrictions which must be considered in the schedule (e.g., permitting, long lead items, and phasing). The Government will evaluate the strength of understanding of events associated with coordinating submittals, Offeror's capability to schedule the complete project within the proposed contract duration and the realism of the schedule.

M.8. FACTOR 5: RELEVANT EXPERIENCE AND PAST PERFORMANCE

M.8.1. The Offeror's experience in the construction of facilities similar to this project will be evaluated. A pass or fail rating will be given for project examples which are determined to be recent and relevant to this project and clearly demonstrate a contractor's capabilities to construct a project of this nature and execute the project successfully and on schedule. Include the experience of subcontractors performing key elements of work.

M.8.2. The Evaluation Board will evaluate the Offeror's record of past and current performance to ascertain the probability of successfully performing the required efforts of the contract.

M.8.3. The Evaluation Board will focus its inquiries on the Offeror's record of performance as it relates to the solicitation requirements, including cost, schedule, performance and management of subcontractors. A significant achievement, problem, or lack of relevant data in any element of the work can become an important consideration in the evaluation process. Therefore, Offerors will be reminded to include the most recent and relevant efforts in their proposal. Data used in conducting performance risk assessments shall not extend past the definition of "recent" included herein.

M.8.4. The Government may contact references other than those identified by the Offeror, and information received may be used in the evaluation of the Offeror's performance.

M.8.5. For the purpose of evaluating past performance, the following definitions apply:

M.8.6. RECENT: An evaluation of the past performance information will be made to determine if it is recent. Recent is defined as active contract performance during the five (5) years preceding the date of issuance of this solicitation. Contracts that were started prior to this time, but still in effect with active performance as of five (5) years from the date of this solicitation, will be considered recent. If a contract reference is determined recent (had some or all active performance in the five (5) years preceding the solicitation issuance date), and had active performance prior to the five (5) years preceding the date of issuance of this solicitation, the Government may evaluate the Offerors' performance record during the entire contract period. Past performance information that fails this condition will not be evaluated. More recent performance will have a greater impact on the rating than a less recent or relevant effort.

M.8.7. RELEVANT: The Government will conduct an in-depth evaluation of all relevant performance information obtained to determine how closely the work performed under those contracts relate to the services described in the SOW. Specifically, relevant is defined as contracts of similar scope, type, and magnitude, involving the type of services.

M.8.8. Offerors shall provide adequate past performance information on completed or current contracts (including Federal, State, local government and commercial) considered most relevant in demonstrating the ability to perform the proposed work as identified within the SOW. Offerors are required to explain what aspects of each contract are deemed relevant to complexity and magnitude as related to the requirements of this solicitation and in accordance with this section. Failure to provide required relevancy description may impact the rating, aspects of

previous projects should match work elements identified in the solicitation.

M.8.9. A relevancy determination of the Offeror's past performance will be made based upon the aforementioned considerations, including joint venture partner(s) and major and critical subcontractor(s).

M.8.10. The proposal review will only consider the experience or past performance of an offeror's parent or affiliated companies where the firm's proposal demonstrates that the resources of the parent or affiliated company will affect the performance of the offeror. The relevant consideration is whether the resources of the parent or affiliated company--its workforce, management, facilities or other resources--will be provided or relied upon for contract performance, such that the parent or affiliate will have meaningful involvement in contract performance.

M.9. FINAL SELECTION

The Government intends to award without discussions. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a technical and price standpoint. Proposals will be analyzed to determine which is most advantageous to the Government based upon information provided in response to evaluation factors.

The Contracting Officer will award to the Offeror whose proposal conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, all factors considered.

END OF SECTION M – EVALUATION FACTORS FOR AWARD

END OF REQUEST FOR PROPOSAL